

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): JORDAN COOK, ESQ. BAR NO. 179720/ EMILY PIERCE, ESQ. BAR NO. 240084/ GREGORY J. BABCOCK, ESQ. BAR NO. 260437/ KRISTEN KOHLER, ESQ. BAR NO. 263579/ LORI WILLIAMS, ESQ. BAR NO. 242985 10680 TREENA ST., SUITE 500 SAN DIEGO, CA, 92131 TELEPHONE NO.: 866/428-8102 FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): PORTFOLIO RECOVERY ASSOCIATES, LLC	FOR COURT USE ONLY Electronically Filed by Superior Court of CA, County of Santa Clara, on 3/13/2024 5:49 AM Reviewed By: T. Duarte Case #24CV430543 Envelope: 14685405
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 NORTH FIRST STREET MAILING ADDRESS: CITY AND ZIP CODE: SAN JOSE 95113 BRANCH NAME: SANTA CLARA SUPERIOR COURT	
PLAINTIFF/PETITIONER: PORTFOLIO RECOVERY ASSOCIATES, LLC DEFENDANT/RESPONDENT: NANA DARKO	
REQUEST FOR DISMISSAL	
CASE NUMBER: 24CV430543	
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.	
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)	

1. TO THE CLERK: Please **dismiss** this action as follows:

- a. (1) ☐ With prejudice (2) ☒ Without prejudice
- b. (1) ☐ Complaint (2) ☐ Petition
- (3) ☐ Cross-complaint filed by (name):
- (4) ☐ Cross-complaint filed by (name):
- (5) ☒ Entire action of all parties and all causes of action
- (6) ☐ Other (specify):*

on (date):

on (date):

2. (Complete in all cases except family law cases.)

The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date: 03/13/2024

JORDAN COOK, ESQ. BAR NO. 179720

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.



(SIGNATURE)

Attorney or party without attorney for:

- ☒ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given.**

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

** If a cross-complaint – or Response (Family Law) seeking affirmative relief – is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (i) or (j).

(SIGNATURE)

Attorney or party without attorney for:

- ☐ Plaintiff/Petitioner ☐ Defendant/Respondent
- ☐ Cross-Complainant

(To be completed by clerk)

4. ☒ Dismissal entered as requested on (date): 3/13/2024 5:49 AM

5. ☐ Dismissal entered on (date): as to only (name):

6. ☐ Dismissal **not entered** as requested for the following reasons (specify):

7. a. ☒ Attorney or party without attorney notified on (date): 3/13/2024 5:49 AM
- b. ☐ Attorney or party without attorney not notified. Filing party failed to provide

☐ a copy to be conformed ☐ means to return conformed copy

Date: 3/13/2024 5:49 AM

Clerk, by _____, Deputy



PLAINTIFF/PETITIONER: PORTFOLIO RECOVERY ASSOCIATES, LLC
 DEFENDANT/RESPONDENT: NANA DARKO

CASE NUMBER:
 24CV430543

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name)*:
2. The person named in item 1 is *(check one below)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. ☐ All court fees and court costs that were waived in this action have been paid to the court *(check one)*: ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date:

 (TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY MAKING DECLARATION)

 (SIGNATURE)